No. 26-1864

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IN THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

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Tushawn Craig, *et al.*,

Plaintiffs-Appellees,

v.

City of Richmond, Indiana,

Defendant-Appellant.

Tushawn Craig, et al.

Plaintiffs-Appellees,

v.

City of Richmond, Indiana

Defendant-Appellant.

Appeal from the United States District Court for the Southern District of Indiana

Case No. 1:25-cv-00782-MPB-MJD

The Honorable Matthew P. Brookman

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BRIEF OF APPELLEES

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TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES ii

JURISDICTIONAL STATEMENT 1

STATEMENT OF THE CASE 2

SUMMARY OF THE ARGUMENT 4

ARGUMENT 4

I. The City of Richmond's Brief is Predicated Upon the Mischaracterization of the Citizens of Richmond's Complaint for Damages and Allegations Therein. 4

II. The April 11, 2023, Fire at the Industrial Facility in Richmond, Indiana Was a Singular Event 5

III. The District Court Did Not Have Jurisdiction Since the Case Was Not a Mass Action Under CAFA 8

1. The City of Richmond's Brief is Predicated Upon the Mischaracterization of the Citizens of Richmond's Complaint for Damages and Allegations Therein. 11

2. The April 11, 2023, Fire at the Industrial Facility in Richmond, Indiana Was a Singular Event 12

3. The District Court Did Not Have Jurisdiction Since the Case Was Not a Mass Action Under CAFA 23

CONCLUSION 8

CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT, TYPEFACE REQUIREMENTS, AND TYPE-STYLE REQUIREMENTS 10

CERTIFICATE OF SERVICE 11

Conclusion 27

Certificate of Compliance with Type-Volume Limit, Typeface Requirements And Type-Style Requirements 29

Certificate of Service 30

TABLE OF AUTHORITIES

Cases: **Page(s)**

Abraham v. St. Croix Renaissance Group, L.L.L.P.,
719 F.3d 270 (3d Cir. 2013) 6, 7

Abednego v. Aloca, Inc., No. 10-9, 2011 WL 941569 (D.V.I. Mar. 17, 2011) 24

Adams v. Int'l Paper Co.,
2017 WL 1828908 (S.D. Ala. May 5, 2017) 6

Addison v. Louisiana Reg'l Landfill Co.,
398 F. Supp. 3d 4 (E.D. La. 2019) 6, 7

Allen v. Boeing Co.,
784 F.3d 625 (9th Cir. 2015) 1, 4, 5, 6

Allen v. Monsanto Co.,
2010 WL 8752873 (N.D. Fla. Feb. 1, 2010) 6

Anderson v. Bayer Corp.,
610 F.3d 390 (7th Cir. 2010) 2

Armstead v. Multi-Chem Grp., LLC, No. 6:11-2136, 2012 WL 1866862 (W.D. La. May 21, 2012) 6

Breakman v. AOL LLC, 545 F. Supp. 2d 96 (D.D.C. 2008) 26

Brill v. Countrywide Home Loans, Inc., 427 F.3d 446 (7th Cir. 2005) 23, 25

Connecticut v. Moody's Corp., No. 3:10cv546, 2011 WL 63905 (D. Conn. Jan. 5, 2011) 26

Continental Indem. Co. v. Bll, Inc., 104 F. 4th 630 (7th Cir. 2024) 25

Cooper v. R.J. Reynolds Tobacco Co., 586 F. Supp. 2d 1312 (M.D. Fla. Aug. 29, 2008) 24

George v. Islamic Republic of Iran, 63 F. App'x 917 (7th Cir. 2003) 25

Hamilton v. Burlington N. Santa Fe Ry. Co., No. A-8-CA-132, 2008 WL 8148619 (W.D. Tex. Aug. 8, 2008) 6

Hay v. Ind. State Bd. of Tax Comm'rs, 312 F.3d 876 (7th Cir. 2002) 25

Holiday v. Alt. Richfield Co.,
No. 2:16-cv-525 JVB, 2018 WL 11409352 (N.D. Ind. Mar. 7, 2018) 6

Hukic v. Aurora Loan Servs., 588 F.3d 420 (7th Cir. 2009) 25

Lafalier v. Cinnabar Serv. Co., Inc., 2010 U.S. Dist. LEXIS 36215, 2010 WL 1486900 (N.D. Okla. April 13, 2010) 5

LG Display Co. v. Madigan,
665 F.3d 768 (7th Cir. 2011) 2

Rainbow Gun Club, Inc. v. Denbury Onshore, L.L.C.,
760 F.3d 405 (5th Cir. 2014) 5

Rightsell v. Carrington Mortg. LLC,
2026 U.S. Dist. LEXIS 51716 (N.D. Ind. Mar. 6, 2026) 5

Robertson v. Chevron USA, Inc.,
2016 WL 3667153 (E.D. La. July 11, 2026) 6, 7

Shanklin v. Speidel Found. Needs Trust, Inc., 953 F.3d 735 (11th Cir. 2020) 5

Statutes:

28 U.S.C. § 1332(d)(11) 1, 2, 4, 5

28 U.S.C. § 1453(c) 7

Cases Page

Abraham v. St. Croix Renaissance Group, L.L.L.P., 719 F.3d 270 (3d Cir. 2013) 13, 16, 18

Adams v. Int'l Paper Co., 2017 WL 1828908 (S.D. Ala. May 5, 2017) 13, 20, 23-25

Addison v. Louisiana Reg'l Landfill Co., 398 F. Supp. 3d 4 (E.D. La. 2019) 13, 15, 24

Allen v. Boeing Co., 784 F.3d 625 (9th Cir. 2015) ..... passim

Allen v. Monsanto Co., 2010 WL 8752873 (N.D. Fla. Feb. 1, 2010) 13, 23-25

Anderson v. Bayer Corp, 610 F.3d 390 (7th Cir. 2010) 6-7

Armstead v. Multi-Chem Grp., LLC, No. 6:11-2136, 2012 WL 1866862 (W.D. La. May 21, 2012) 24

Breakman v. AOL LLC, 545 F. Supp. 2d 96 (D.D.C. 2008) 26

Brill v. Countrywide Home Loans, Inc., 427 F.3d 446 (7th Cir. 2005) 23, 25

Connecticut v. Moody's Corp., No. 3:10cv546, 2011 WL 63905 (D. Conn. Jan. 5, 2011) 26

Continental Indem. Co. v. Bll, Inc., 104 F. 4th 630 (7th Cir. 2024) 25

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Hamilton v. Burlington N. Santa Fe Ry. Co., No. A-8-CA-132, 2008 WL 8148619 (W.D. Tex. Aug. 8, 2008) 13

Hay v. Ind. State Bd. of Tax Comm'rs, 312 F.3d 876 (7th Cir. 2002) 25

28 U.S.C. § 1332(d)(11) 1, 2, 4, 5

28 U.S.C. § 1453(c) 7

Holiday v. Alt. Richfield Co., No. 2:16-cv-525 JVB, 2018 WL 11409352 (N.D. Ind. Mar. 7, 2018) 14, 24

Hukic v. Aurora Loan Servs., 588 F.3d 420 (7th Cir. 2009) 25

Lafalier v. Cinnabar Serv. Co., Inc., 2010 U.S. Dist. LEXIS 36215, 2010 WL 1486900 (N.D. Okla. April 13, 2010) 12

JURISDICTIONAL STATEMENT

The Appellees (hereinafter "the citizens of Richmond") are dissatisfied with Appellant's ("City of Richmond") jurisdictional summary as it is incomplete and incorrect because the District Court never had jurisdiction under 28 U.S.C. § 1332(d)(11)(B) when the case does not constitute a mass action. That is the crux of the issue before this Honorable Court.

Under 28 U.S.C. § 1332(d)(11), the district courts shall have original jurisdiction of any civil action in which the matter in controversy exceeds the sum or value of $5,000,000, exclusive of interest and costs, and is a mass action. A mass action is a civil action in which monetary relief claims of 100 or more persons are proposed to be tried jointly on the ground that the plaintiffs' claims involve common questions of law or fact. 28 U.S.C. § 1332(d)(11)(B)(i).

The term mass action shall not include any civil action in which all of the claims in the action arise from an event or occurrence in the State in which the action was filed, and that allegedly result in injuries in that State or in States contiguous to that State. 28 U.S.C. § 1332(d)(11)(B)(ii). CAFA has a "local single event exception" that applies "only to a truly local single event with no substantial interstate effects." *Allen v. Boeing Co.*, 784 F.3d 625, 632 (9th Cir. 2015).

Notably, the citizens of Richmond subsequently filed a Notice for Voluntary Dismissal of Defendant, My-Way Trading, Inc., under Federal Rule of Civil Procedure 41(a) prior to their Answer to Plaintiffs' Complaint.[1] Therefore, this case is brought by citizens of Richmond, against the City of Richmond in the State of Indiana, Seth Smith, a resident of Indiana, and Cornerstone Trading Group, LLC, an Indiana corporation.

The citizens of Richmond do not dispute that at the time of Removal, there were 100 or more persons, minimal diversity was present, and the aggregate amount in controversy exceeded $5,000,000.00. At that time, the citizens of Richmond additionally pursued this case against My-Way Trading, Inc., an Ohio corporation.

[1] The City of Richmond makes several references to the citizens of Richmond's claims against My-Way Trading Inc.; however, those claims are wholly inapplicable when they have been dismissed from this lawsuit. The citizens of Richmond would therefore respectfully request this Court decline to consider any evaluation of the issues at hand as they apply to My-Way Trading, Inc.

Corp. and *LG Display Co. v. Madigan*, 610 F.3d 390 (7th Cir. 2010), 665 F.3d 768 (7th Cir. 2011). In those matters, after initially being removed to federal court under CAFA, the Court found that the cases did not meet the definition of "mass actions" under 28 U.S.C. § 1332(d)(11)(B). *Id.* Irrespective of the specific provision of 28 U.S.C. § 1332(d)(11)(B) that the Court found inapplicable, in both of those cases the District Court correctly determined that the case was not a mass action under CAFA. *Id.* Thus, the Appellate Court lacked jurisdiction over an appeal from the district court's remand order, and the petition to leave for appeal under 28 U.S.C. § 1453(c) was denied. *Anderson*, 610 F. 3d at 395; 655 F.3d at 774. The same applies here.

Given that the District Court did not have jurisdiction under CAFA, the Seventh Circuit Appellate Court lacks jurisdiction over this appeal from the District Court's Order Adopting Magistrate Judge's Recommended Disposition. (JA1-JA12).

STATEMENT OF THE CASE

The City of Richmond's mischaracterization of the statement of the case and the citizens of Richmond's allegations in their Complaint is at the heart of all of the issues henceforth. On April 11, 2023, the properties at 308, 310, and 358 NW F Street in Richmond, Indiana (hereinafter "the Industrial Facility") were engulfed by a massive fire and burned for at least seven (7) days. (Civil Action No. 1:23-cv-1575, Dkt. 1-3, p. 4). **This fire is the singular event from which the citizens of Richmond were injured.**

On the day the fire started, the City of Richmond owned the properties on 358 and 310 NW F Street ("358" and "310", respectively). *Id.* Defendant, Seth Smith, the President and Registered Agent of Defendant, Cornerstone Trading Group, LLC (hereinafter "Cornerstone"), owned the property on 308 NW F Street ("308"). *Id.*

seven (7) days. (Civil Action No. 1:23-cv-1575, Dkt. 1-3, p. 4). This fire is the singular event from which the citizens of Richmond were injured.

As a result, two lawsuits have been pursued that stem from this catastrophic inferno on April 11, 2023: (a) a class action brought by the residents within the evacuation zone[3] and (b) the present, individual action brought by one hundred and fifty-two (152) citizens of Richmond, both inside and outside of the evacuation zone.

As a direct result of that fire, police and fire officials issued an order requiring individuals within 0.5 miles of the Industrial Facility to evacuate and those outside the evacuation zone to shelter in place. *Id.* The evacuation order was lifted on April 16, 2023, but it was not until April 19, 2023, that the Richmond Fire Department declared that the fire had been extinguished. *Id.*

The individual action at hand is composed of one hundred and fifty-two (152) citizens of Richmond. Of those, approximately 119 citizens reside within the half mile radius of the fire that would qualify them as members of the class. The remaining 33 citizens reside outside of the half mile radius and would not qualify as class members. This was not a duplicative lawsuit; all one hundred and fifty-two (152) citizens would have their own individualized claim irrespective of the class action should they opt out of or not qualify as members of the class.[4]

As a result, two lawsuits have been pursued that stem from this catastrophic inferno on April 11, 2023: (a) a class action brought by the residents within the evacuation zone[2] and (b) the present, individual action brought by one hundred and fifty-two (152) citizens of Richmond, both inside and outside of the evacuation zone.

By the time the two-year statute of limitations approached in April of 2025, the Southern District Court had not determined whether to certify the class.[3] In order to preserve the claims of potential class members and citizens who did not meet the definition of a class member, this individualized action was filed.[4] The citizens of Richmond's Complaint alleges that for years leading up to the April 11, 2023, fire, Defendants were aware that a fire hazard existed and failed to take affirmative steps to address it.

By the time the two-year statute of limitations approached in April of 2025, the Southern District Court had not determined whether to certify the class.[5] In order to preserve the claims of potential class members and citizens who did not meet the definition of a class member, this individualized action was filed.[6] The citizens of Richmond's Complaint alleges that for years leading up to the April 11, 2023, fire, Defendants were aware that a fire hazard existed and failed to take affirmative steps to address it.

On August 11, 2025, the Magistrate Judge sua sponte issued a Report and Recommendation to remand this matter to state Court. (JA30-38). After the City objected to the Magistrate's recommendation, the District Court issued an Order Adopting the Magistrate Judge's Recommended Disposition. (JA1-JA12). Since all of the claims in the action arise from

On August 11, 2025, the Magistrate Judge *sua sponte* issued a Report and Recommendation to remand this matter to state Court. (JA30-38). After the City objected to the Magistrate's recommendation, the District Court issued an Order Adopting the Magistrate Judge's Recommended Disposition. (JA1-JA12). Since all of the claims in the action arise from

[3] 1:23-cv-1575, S.D. Ind.; Crossen Law Firm no longer represents the class action plaintiffs.
[4] The citizens of Richmond have relayed to the Defendants and to the Court that if they qualify for the class and opt in, they will be dismissed from this matter accordingly. At the time of this filing, none of the citizens of Richmond have opted into the class.

[5] The Class was subsequently certified and class members are actively being notified. 1:23-cv-1575, S.D. Ind.

[6] Accusing the citizens of Richmond of forum shopping and attempting to avoid a District Court's denial of remand in a separate case is disingenuous and unnecessary when remand was determined by the District Court. *See* 1:23-cv-1854, Dkt. 26, p. 8 and 38).

Magistrate's recommendation, the District Court issued an Order Adopting the Magistrate Judge's Recommended Disposition. (JA1-JA12). Since all of the claims in the action arise from that singular, catalytic event in Richmond, Indiana, the claim does not qualify as a mass action under CAFA, and the District Court did not have jurisdiction. The District Court properly remanded this case to State Court.

SUMMARY OF THE ARGUMENT

The citizens of Richmond respectfully request this Court affirm the District Court's Order Adopting Magistrate Judge's Recommendation (JA1-JA12) when the District Court did not have jurisdiction since the citizens of Richmond's Complaint involved a local, singular event or occurrence.

Firstly, the City of Richmond's misinterpretation of the citizens of Richmond's claims gives rise to the confusion in appropriately applying 28 U.S.C. § 1332(d)(11)(B)(ii). Since none of the citizens of Richmond were harmed by any conduct (or lack thereof) by the City of Richmond until the fire on April 11, 2023, they are not alleging continuous claims.

Secondly, the exception under 28 U.S.C § 1332(d)(11)(B)(ii) applies when the April 11, 2023, fire meets the definition of an event or occurrence in the state in which the action was filed that resulted in injuries in that state. By applying the Ninth Circuit's interpretation of "event" under *Allen*, the April 11, 2023, fire falls into the exception when it was a truly local, notable, singular, injury causing event with no substantial interstate effects. Furthermore, no matter what Circuit Court's analysis is applied, this case falls under the exception. This matter wholistically and perfectly reflects the legislative intention of CAFA and should be remanded to state court.

ARGUMENT

I. The City of Richmond's Brief is Predicated Upon the Mischaracterization of the Citizens of Richmond's Complaint for DCAFEs and Allegations Therein.

First and foremost, the City of Richmond misconstrues the citizens of Richmond's allegations that the City of Richmond knew or should have known of the dangers as being the time of removal. The exception is part of the definition of a mass action, which needed to be explicit acts or omissions that caused their injuries. That is not the case. The citizens of

Lastly, the City of Richmond failed to evidence that the District Court had jurisdiction at

The City of Richmond is overcomplicating this simple lawsuit. The citizens of Richmond were living their lives unharmed and unaffected by the activities and dealings at the Industrial Facility until the day of the fire. Defendants absolutely failed to adhere to Building Commission Orders, neglected to follow applicable codes or ordinances, conducted ultra hazardous activities, and dumped thousands upon thousands of pounds of plastic across three parcels of land for years. However, the citizens of Richmond did not have a claim against them for doing so until it caused them injuries when it all exploded on April 11, 2023.

Having clarified the basis of the citizens of Richmond's allegations, defining the "event or occurrence" under the CAFA exception is much more apparent.

2. The April 11, 2023, Fire at the Industrial Facility in Richmond, Indiana Was a Singular Event

Secondly, the ultimate issue is whether a case involving a sudden, industrial fire at one location on April 11, 2023 constitutes a "mass action" when it *shall not* include any civil action in which all of the claims in the action arise from an *event or occurrence* in the State in which the action was filed, and that allegedly resulted in injuries in that State." 28 U.S.C. § 1332(d)(11)(B)(ii)(I) (emphasis added). "The 'event or occurrence' exclusion under CAFA applies only where all claims arise from a single event or occurrence." *Allen*, 784 F.3d at 629 (quoting *Lafalier v. Cinnabar Serv. Co., Inc.*, 2010 U.S. Dist. LEXIS 36215, 2010 WL 1486900, at *4 (N.D. Okla. April 13, 2010)).

The legislative history of CAFA supports the interpretation that the exception was intended to apply "only to a truly local single event with no substantial interstate effects" in order to "allow cases involving environmental torts such as a chemical spill to remain in the state court if both the event and the injuries were truly local." S. Rep. N. 109-14, at 41 (2005). This perfectly aligns with the matter at hand.

Richmond's negligence claims relate to the ignition of the three parcels of land – not the several circumstances that occurred over various periods of time. There was no injury and thus no cognizant claim until the fire, the culminating and pivotal moment of injury, on April 11, 2023.

In Indiana, the elements of a personal injury tort are: (1) that the defendant owed the plaintiff a duty; (2) that the defendant breached that duty; and (3) that the breach caused injury to the plaintiff. Rightsell v. Carrington Mortg. LLC, 2026 U.S. Dist. LEXIS 51716 at *6 (N.D. Ind. Mar. 6, 2026). The most imperative distinction here is that there is no tort claim unless it caused injuries.

Having clarified the basis of the citizens of Richmond's allegations, defining the "event or occurrence" under the CAFA exception is much more apparent.

II. The April 11, 2023, Fire at the Industrial Facility in Richmond, Indiana Was a Singular Event

Secondly, the ultimate issue is whether a case involving a sudden, industrial fire at one location on April 11, 2023 constitutes a "mass action" when it shall not include any civil action in which all of the claims in the action arise from an event or occurrence in the State in which the action was filed, and that allegedly resulted in injuries in that State." 28 U.S.C. § 1332(d)(11)(B)(ii)(I) (emphasis added). "The 'event or occurrence' exclusion under CAFA applies only where all claims arise from a single event or occurrence." *Allen*, 784 F.3d at 629 (quoting *Lafalier v. Cinnabar Serv. Co., Inc.*, 2010 U.S. Dist. LEXIS 36215, 2010 WL 1486900, Okla. April 13, 2010)).

The District Court further held that "event" includes "continuing tortious conduct so long as that conduct 'culminate[d]' in a single, injury causing event." (JA8). In support, the District Court cited several cases across all Circuits that have generally read "event or occurrence" to include tortious conduct that "culminate[d]" in a single, injury causing event. *Id.*; *See Spencer v. Specialty Foundry Prods. Inc.*, 953 F.3d 735 (11th Cir. 2020); *Rainbow Gun Club, Inc. v.*

the exception when there was not any harm to the citizens of Richmond until the ultimate, single, and local injury causing event on April 11, 2023.

As the District Court acknowledged, continuous conduct that was potentially wrong does not equal a claim until it culminated at a single instance in an injury causing event. (JA8). This differs from the facts in *Holiday v. Alt. Richfield Co.* which continuously caused plaintiffs injuries over a span of time. No. 2:16-cv-525 JVB, 2018 WL 11409352 (N.D. Ind. Mar. 7, 2018). Conversely, the citizens of Richmond are not claiming any injury from any conduct that happened before the fire on April 11, 2023; all of the citizens of Richmond's injuries stemmed from and are as a result of the April 11, 2023, fire. The District Court therefore correctly concluded that the exception applied to the case at hand.

Instead, the City of Richmond asks this Court to adopt the Ninth Circuit's evaluation under *Allen.* (App. Dkt. 26-1864, Dkt. 12, p. 10); 784 F.3d 625. In doing so, the City of Richmond requested that the Seventh Circuit apply the plain language of CAFA and hold that an event means a singular happening. *Id.* However, the District Court's decision is additionally supported by *Allen* and would provide the same result: the single event exception applies.

In Allen, CAFA's "local single event exception" applies "only to a truly local single event with no substantial interstate effects." 784 F.3d at 632; (App. Dkt. 26-1864, Dkt. 12, p. 10). *Allen* provides that an 'event' is 'something (especially something important or notable) that happens' or 'a thing that happens, esp. one of importance.' *Id.* at 630-31. The court read "an event or occurrence" to mean a "single happening." *Id.* at 631. The court indicated that "an event or occurrence" should not apply to continuing tortious conduct unless it culminates in a single event. *Id.* There must be a single, claim-generating event – such as a fire. *Id.; see also Robertson*,

Denbury Onshore, L.L.C., 760 F.3d 405 (5th Cir. 2014); *Abraham v. St. Croix Renaissance Group, L.L.L.P.*, 719 F.3d 270 (3d Cir. 2013); *Addison v. Louisiana Reg'l Landfill Co.*, 398 F. Supp. 3d 4, 13 (E.D. La. 2019); *Adams v. Int'l Paper Co.*, 2017 WL 1828908 at *6 (S.D. Ala. May 5, 2017); *Robertson v. Chevron USA, Inc.*, 2016 WL 3667153 at *9 (E.D. La. July 11, 2026); *Allen v. Monsanto Co.*, 2010 WL 8752873 at *10 (N.D. Fla. Feb. 1, 2010); *Hamilton v. Burlington N. Santa Fe Ry. Co.*, No. A-8-CA-132, 2008 WL 8148619, at *12 (W.D. Tex. Aug. 8, 2008). Applying it to the case at hand, the District Court found that the citizens of Richmond's allegations fell within the scope of the exception; it involved a truly local event with no substantial interstate effects; the fire allegedly caused some environmental harm; and the injuries were all truly local. (JA1-JA12; JA37).

In *Allen*, CAFA's "local single event exception" applies "only to a truly local single event with no substantial interstate effects." 784 F.3d at 632; (App. Dkt. 26-1864, Dkt. 12, p. 10). *Allen* concluded that the exception applied to the case at hand.

occurrence" should not apply to continuing tortious conduct unless it culminates in a single

event. *Id.* There must be a single, claim-generating event – such as a fire. *Id.*; *see also* Robertson, 2016 WL 3667153; *Addison*, 398 F. Supp. 3d 4. This is equivalent to the approach taken by the District Court. *See* (JA9-JA10).

The *Allen* definition of the exception applies squarely here. Unlike cases involving a continuous course of tortious conduct gradually over many years, the citizens of Richmond are suing for the devastating consequences of a single catastrophic event: a massive industrial fire and explosion. While the City of Richmond may have been long aware of the accumulating plastics and debris on its properties, that mere accusation did not itself cause the citizens of Richmond's injuries. It was not until the Industrial Facility went up in smoke that families were displaced; neighborhoods were covered in soot and ash; homes were blackened with smoke; residents were forced to incur unexpected and mandatory expenses to find safe shelter for plaintiffs and their property. *Id.* at 273. The defendant removed the case to the district court, but plaintiffs argued that removal was improper because the action fell within the local single event exception. *Id.* The defendants contended that the exception did not apply because they understood plaintiffs' complaint to allege that 'there were multiple events and occurrences over many years' that did not make it a single event or occurrence. *Id.*

The Third Circuit rejected defendant's argument and held that the action fell within the local single event exception, explaining:

> "As the District Court explained, the 'word event in our view is not always confined to a discrete happening that occurs over a short period over a short time span such as a fire, explosion, hurricane, or chemical spill.... The Court's construction of the word is consistent with the word's common usage. Important events in history are not always limited to discrete incidents that happened at a specific and precise moment in time. As further support for this construction, we note that the plain text of the exclusion and the statutory scheme do not delimit the words "event or occurrence" to a specific incident with a fixed duration of time. Because the words "event" and "occurrence" do not commonly or necessarily refer in every instance to what transpired at an isolated moment in

As the District Court explained, the 'word event in our view is not always confined to a discrete happening that occurs over a short period over a short time span such as a fire, explosion, hurricane, or chemical spill.... The Court's construction of the word is consistent with the word's common usage. Important events in history are not always limited to discrete incidents that happened at a specific and precise moment in time. As further support for this construction, we note that the plain text of the exclusion and the statutory scheme do not delimit the words "event or occurrence" to a specific incident with a fixed duration of time. Because the words "event" and "occurrence" do not commonly or

time, there is no reason for us to conclude that Congress intended to limit the phrase "event or occurrence" in Section 1332 (d)(11)(B)(ii)(I) in this fashion." *Id.* at 277-78 (emphasis added).

In the class action case, minimal diversity was established under the class action requirements that permitted removal - not under 28 U.S.C. § 1332(d)(11)(B)(ii). These are two isolated cases with different parameters and jurisdiction has to be analyzed accordingly. The District Court never, nor can they, asserted jurisdiction over this specific dispute just because it had a basis in the class action. Irrespective of any of the party's desires to keep common questions of fact and law before the same District Court, the parties cannot stipulate to or thwart jurisdiction upon the District Court. It is for that reason the District Court, on its own volition, remanded the case.

[Transcription note: the rest of the quotation, the remainder of Argument II, and the text of Argument III are not transcribed here.]

III. The District Court Did Not Have Jurisdiction Since the Case Was Not a Mass Action Under CAFA

CONCLUSION

In conclusion, the District Court's Order Adopting Magistrate Judge's Recommendation (JA1-12) should be affirmed when the District Court did not have subject matter jurisdiction since the citizens of Richmond's Complaint involved a local, singular event or occurrence. The citizens of Richmond were injured by a singular happening when a local fire erupted on April 11, 2023. Because the citizens of Richmond's claims fall under an exception to the definition of a "mass action," the District Court did not have jurisdiction and properly remanded the case back to state court.

The City of Richmond provide no statutory or case law in support of this unsubstantiated request to assume jurisdiction. They also do not provide any arguments under res judicata or collateral estoppel – likely because neither apply to this legal issue. Since the jurisdictional analysis in the class action completely differed from the application of the mass action definition, it is not binding here.

CONCLUSION

In conclusion, the District Court's Order Adopting Magistrate Judge's Recommendation (JA1-12) should be affirmed when the District Court did not have subject matter jurisdiction since the citizens of Richmond's Complaint involved a local, singular event or occurrence. The citizens of Richmond were injured by a singular happening when a local fire erupted on April 11, 2023. Because the citizens of Richmond's claims fall under an exception to the definition of a "mass action," the District Court did not have jurisdiction and properly remanded the case back to state court.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE WITH TYPE-VOLUME LIMIT, TYPEFACE REQUIREMENTS, AND TYPE-STYLE REQUIREMENTS

1. This document complies with the page and word limitation of Fed. R. App. P. 32(a)(7)(B) and Circuit Rule 32(c) and, excluding the portions of the filing exempted by Fed. R. App. P. 32(f), contains 2,575 words (including footnotes).

2. This document complies with the typeface requirements and the type-style requirements of Fed. R. App. P. 32(a)(5) and (6) and Circuit Rule 32(b) because it has been prepared in a proportionally spaced typeface, Liberation Serif, in 12-point text and 11-point footnotes.

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CERTIFICATE OF SERVICE

I hereby certify that on May 21, 2026, the foregoing Brief of Appellees was submitted for filing with the Clerk of Court of the United States Court of Appeals for the Seventh Circuit

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